

Sections 4
and 5.

SECOND SCHEDULE.

PROVISIONS OF COLONIAL LOANS ACT, 1899, APPLIED.

Power to make
advances to
certain colo-
nies and places.
50 & 51 Vict.
c. 16.

1.—(1) * * * * *

(2) The advances authorised by this Act shall be local loans within the meaning of the National Debt and Local Loans Act, 1887, and that Act shall apply accordingly.

(3) Every such advance * * * * *

shall be repaid within such period (not exceeding fifty years from the date thereof) as the Treasury and the Secretary of State determine in each case, and either by means of equal instalments of principal, or by means of an annuity of principal and interest combined as may be similarly determined.

Security for
loan.

2.—(1) An advance shall not be made in pursuance of this Act until the legislative authority of the colony or place to the Government of which the advance is to be made have provided to the satisfaction of the Treasury and the Secretary of State—

(a) for raising and appropriating and duly applying the loan ;

(b) for charging on the general revenues and assets of the colony, with priority over any subsequent charges, the principal of the loan ; and

(c) for so charging and also for remitting to the Treasury in such manner as the Treasury determine—

(i) such yearly or half-yearly payments on account of the interest on, and the repayment of the principal of, the loan as the Treasury fix ; and

(ii) interest at such rate as the Treasury fix on any such payment in arrear ; and

(d) for raising or securing the raising of sufficient revenue to meet the above charges.

(2) Every Act or ordinance of the legislative authority of the colony or place which in any way impairs the validity or priority of any such charge or diminishes the revenue to be raised as above mentioned shall, so far as it impairs or diminishes the same, be void unless the consent of the Treasury and the Secretary of State has been previously obtained.

CHAPTER 37.

An Act to authorise the Treasury to guarantee the payment of a Loan to be raised by the Colony of the Transvaal.

[28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
Treasury to
guarantee
Transvaal loan.

1.—(1) The Treasury may, subject to the provisions of this Act, guarantee in such manner as they think fit the payment of the interest on any loan raised by the Colony of the Transvaal

for the purposes set out in the First Schedule to this Act, not exceeding in the aggregate an amount of stock sufficient to raise five million pounds, or stock of a nominal amount of five million pounds, whichever is least, and also the sinking fund payments for the repayment of the principal of the loan as fixed in accordance with this Act.

(2) Subsections (2) to (6) of section one of the South African Loan and War Contribution Act, 1903, which are set out in the Second Schedule to this Act, with the modifications shown in that schedule, shall apply, with respect to the guarantee, and the raising of the loan under this Act, as if they were herein re-enacted. 31 Edw. 7.
c. 27.

(3) The Treasury may guarantee the payment of sums secured by any Transvaal Treasury bills, or other securities which may be issued with their approval by the Governor of the Colony of the Transvaal, for the purpose of temporarily raising any sums in anticipation of the loan, in the same manner as they may guarantee the interest on and the sinking fund payments for the loan, and the provisions of this section shall apply with respect to any such guarantee accordingly.

2. This Act may be cited as the Transvaal Loan (Guarantee) Act, 1907. Short title.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

1. Land and agricultural bank	£
2. Railways, public works, irrigation, agricultural settlement, and development, and any expenses of and incidental to the issue of the loan	2,500,000
	The balance.

SECOND SCHEDULE.

Section 1.

SUBSECTIONS (2) TO (6) OF SECTION 1 OF THE SOUTH AFRICAN LOAN AND WAR CONTRIBUTION ACT, 1903.†

1. (1) *	*	*	*	*	*
	*	*	*	*	*

(2) A guarantee shall not be given in pursuance of this Act until the Government of the Transvaal have provided to the satisfaction of the Treasury and the Secretary of State— Power to
Treasury to
guarantee
loans.

(a) for raising, appropriating, and duly applying the loan for the purposes and in the manner set out in the *First* Schedule to

† Modifications are shown in italics.

this Act, subject to any arrangements which may be made for the application of savings on one head of expenditure to another head of expenditure :

- (b) for the establishment and regulation of a sinking fund for the purpose of the repayment within a period not exceeding fifty years from the *first day of July nineteen hundred and eight* of the principal of the loan :
- (c) for charging on the general revenues and assets of the colony or on any other revenues or assets which may be made available for the purpose, with priority over any charges not existing at the date of the passing of this Act, the principal and interest of the loan and any sinking fund payments for the repayment of the principal of the loan :
- (d) for charging on the general revenues and assets of the colony immediately after the last-mentioned charge the repayment to the Treasury of any sum issued out of the Consolidated Fund under this Act on account of the guarantee of the loan, with interest thereon at the rate of four per cent. per annum :
- (e) for raising or securing the raising of sufficient money to meet the above charges.

40 & 41 Vict.
c. 59.

(3) If any loan guaranteed under this Act is raised by stock to which the Colonial Stock Act, 1877, applies, section nineteen of that Act shall not apply.

(4) Every Act or Ordinance of the Legislature of the Transvaal which in any way impairs the validity or priority of any such charge shall, so far as it impairs the same, be void unless the consent of the Treasury and the Secretary of State has been previously obtained.

(5) Any sums required by the Treasury for fulfilling their guarantee given under this Act shall be charged on and issued out of the Consolidated Fund or the growing produce thereof, and any sums paid on account of the repayment of any amount so issued out of the Consolidated Fund shall be paid into the Exchequer.

(6) The Treasury shall lay before both Houses of Parliament a statement of any guarantee given under this Act, and an account of any sums issued out of the Consolidated Fund for the purpose of any such guarantee, as soon as may be after any guarantee is so given or any sum is so issued.

CHAPTER 38.

An Act to make provision with respect to the Disposal of Mining Rights under section thirteen of the Irish Land Act, 1903, and to amend section fifty-four of that Act.

[28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

As to disposal
of mining
rights.

1.—(1) The Irish Land Commission may let, lease, sell or demise to any person in such manner and subject to such conditions as they may think proper, and at the best rent or